

26STCP01168 26STCP01168

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-27

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C26%2C07%2F27%2F2026

Source SHA-256: da7f8e560a1645160cf191b2245a7168c86b7cb8fc3b0adf6d4c92e3f6784c15

Case Number: 26STCP01168 Hearing Date: July 27, 2026 Dept: 26

TENTATIVE RULING:

Petitioner Crestview Mobilehome Community's Petition to Declare Mobilehome Abandoned is Granted. The Proposed Judgment for Abandoned Mobilehome filed on 07/01/2026 is signed and entered this date.

Order to Show Cause Re: Submission of Inventory of Contents of Mobilehome and Accounting of the Money Received from the Sale and/or Disposal and the Disposition of the Money and the Items Contained in the Inventory is set for 01/25/2027 at 9:30 am in Department 26 in the Spring Street Courthouse.

Analysis:

On March 23, 2026, Petitioner Crestview Mobilehome Community ("Petitioner") filed the instant Petition to Declare Mobilehome Abandoned against Respondents Mayra L. Bautista and Miguel Aguilar ("Respondents"). The Court set the Petition for hearing on July 27, 2026 and ordered Petitioner to give notice. (Notice of Hearing, 03/04/26.) Petitioner filed proofs of service of the Petition and Notice of Hearing on July 1, 2026. Following Respondents' failure to file a responsive pleading, the Court entered their default on July 1, 2026. No response to the Petition has been filed to date.

Discussion

Pursuant to Civil Code section 798.61, Petitioner seeks a court order deeming Respondents' mobilehome, located at 1449 E Avenue I, Space D14, Lancaster, California 93535 ("the Mobilehome"), to be abandoned.

Petitioner intends to sell the Mobilehome at public sale. (See Campos, Decl., ¶9; Civ. Code, § 798.61(e).) Petitioner also moves for an award of rent due on the Mobilehome site from June 1, 2025, at \$637.90 per month for a total of \$6,379.00, plus court costs and attorney's fees. (Pet., ¶¶1, 5, Prayer ¶¶1-6.)

Under the moving statute, upon entry of default, "a default judgment shall be thereupon entered." (Civ. Code, § 798.61, subd. (d)(3).) Petitioner's request for a judgment of abandonment with rent due as set forth above, therefore, is granted, with attorney's fees and costs to be awarded according to proof. Petitioner is to comply with the requirements for public sale of the Mobilehome set forth in Civil Code, § 798.61(e).

Conclusion

Petitioner Crestview Mobilehome Community's Petition to Declare Mobilehome Abandoned is Granted. The Proposed Judgment for Abandoned Mobilehome filed on 07/01/2026 is signed and entered this date.

Petitioner's Inventory of Contents of the Mobilehome must be submitted to the Court within ten days of entry of the Judgment of Abandonment.

Order to Show Cause Re: Submission of Inventory of Contents of Mobilehome and Accounting of the Money Received from the Sale and/or Disposal and the Disposition of the Money and the Items Contained in the Inventory is set for 01/25/2027 at 9:30 am in Department 26 in the Spring Street Courthouse.

Moving party to give notice.